

		and/or amendment to the settlement agreement rather than setting forth the text in paragraph 4; and d. The proposed order and judgment must state how notice of entry of the order and judgment will be provided. The hearings on plaintiff's motion for final approval and motion for award of fees and costs is continued to <u>April 18, 2024 at 2:00 p.m.</u> in Department CX104 to enable the parties to address and respond to the above issues. A supplemental brief and other supporting documents shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. Plaintiff is ordered to give notice and to file a proof of service at least 5 court days before the hearing.
2	Danforth v. Placentia-Linda Hospital, Inc. 2023-01321351	Off calendar.
3	Martinez v. EM Tortillas, LLC 2022-01263512	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$225,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Are the parties aware of any related pending actions or other cases that may be impacted by the settlement? 2. Is the "Plaintiff's General Release Payment" (Settlement Agreement ¶ 18) in addition to the "enhancement payment" sought in the motion for approval? The "Plaintiff's General Release Payment" appears to be a payment to settle plaintiff's individual claims in exchange for plaintiff's release. <i>See id.</i> The enhancement payment described in the motion appears intended to compensate plaintiff for her efforts working on the litigation. If